APPENDIX “MANDATORY CLAUSES” · OUTSOURCING POLICY · CHECKLIST

Checklist of mandatory contractual clauses

Version 0.9
Internal

Completed by Project owner, checked by the RCCI **Frequency** Before any signature or renewal

Kept by RCCI (service provider file, with the signed contract)

SERVICE PROVIDER _____ CONTRACT (REFERENCE, DATE) _____ CRITICALITY (APPENDIX “FUNCTION CLASSIFICATION”) _____

For each clause, state the article of the contract that provides for it. A clause missing from a contract on non-negotiable terms is analysed under Article 13 of the policy.

No.	Clause	Applicable	Contract article	Gap and compensating measure
1	Precise description of the services, places of performance and measurable service levels (availability, timeframes, penalties)	All		
2	Confidentiality and professional secrecy, during and after the contract	All		
3	Protection of personal data: role as processor, the Company's instructions, data location, transfers outside Cameroon subject to the Company's consent	All if personal data		
4	Minimum security measures (encryption, access control, logging)	All if access to data		
5	Notification to the Company of any significant security or service incident within 24 hours	All		
6	Right of access, information and audit, off-site and on-site, of the Company, its auditors and COSUMAF; secrecy not enforceable against COSUMAF	Critical		
7	Sub-outsourcing subject to the Company's prior written consent, with the same obligations imposed on the subcontractor	Critical		
8	Service provider's business continuity plan, regular testing and communication of results	Critical		
9	Obligation to inform the Company of any change affecting the service (subcontractors, location, change of control, financial difficulties)	Critical		
10	Periodic reports and indicators provided to the Company	Critical		

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No.	Clause	Applicable	Contract article	Gap and compensating measure
11	Termination by the Company in the event of serious breach, change of control of the service provider or at the request of COSUMAF, without penalty in the latter case	All		
12	Exit (reversibility): full return of data in a usable format, certified erasure, transfer assistance for a sufficient period	All		
13	Compliance by the service provider with applicable laws, including anti-money laundering and anti-corruption laws	All		
14	Service provider's liability insurance	Critical		
15	Governing law and competent jurisdiction; preferably OHADA or Cameroonian law	All		

RCCI OPINION

☐ Contract compliant ☐ Compliant subject to the compensating measures indicated ☐ Not compliant: renegotiation required

OBSERVATIONS

DATE AND SIGN-OFF

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